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Categories of services the tax on intra-State supplies of which shall be paid by the electronic commerce operator (ECO) - 17/2017 - Union Territory GST (UTGST) Rate

Government of India

Ministry of Finance

(Department of Revenue)

Notification No. 17/2017-Union Territory Tax (Rate)

New Delhi, the 28th June, 2017

G.S.R. 708 (E).- In exercise of the powers conferred by sub-section (5) of section 7 of the Union Territory Goods and Services Tax Act, 2017 (14 of 2017), the Central Government, on the recommendations of the Council, hereby notifies that in case of the following categories of services, the tax on intra-State supplies shall be paid by the electronic commerce operator –

(i) services by way of transportation of passengers by a radio-taxi, motorcab, maxicab [2]**[**motor cycle, [6]**[**or any other motor vehicle except omnibus**];]**

[7]**[**(ia) services by way of transportation of passengers by an omnibus except where the person supplying such service through electronic commerce operator is a company**.]**

(ii) services by way of providing accommodation in hotels, inns, guest houses, clubs, campsites or other commercial places meant for residential or lodging purposes, except where the person supplying such service through electronic commerce operator is liable for registration under clause (vi) of section 21 of the Union Territory Goods and Services Tax Act, 2017 read with sub-section (1) of section 22 of the said Central Goods and Services Tax Act.

[1][(iii) services by way of house-keeping, such as plumbing, carpentering etc, except where the person supplying such service through electronic commerce operator is liable for registration under clause (vi) of section 21 of the Union Territory Goods and Services Tax Act, 2017 read with sub-section (1) of section 22 of the said Central Goods and Services Tax Act.]

[3]**[**(iv) supply of restaurant service other than the services supplied by restaurant, eating joints etc. located at specified premises**.]**

[10]**[**(v) services by way of local delivery except where the person supplying such services through electronic commerce operator is liable for registration under clause (vi) of section 21 of the Union Territory Goods and Services Tax Act, 2017 read with sub-section (1) of section 22 of the said Central Goods and Services Tax Act**.]**

Explanation.- For the purposes of this notification,-

(a) “radio taxi” means a taxi including a radio cab, by whatever name called, which is in two-way radio communication with a central control office and is enabled for tracking using Global Positioning System (GPS) or General Packet Radio Service (GPRS);

(b) “maxicab”, “motorcab” [4]**[**motor cycle, motor vehicle and omnibus shall have the same meanings as assigned to them respectively in clauses (22), (25), (27), (28) and (29) of section 2 of the Motor

Vehicle Act, 1988 (59 of 1988).]

[9][(c) “specified premises” has the same meaning as assigned to it in clause (xxxvi) of paragraph 4 of notification number 11/2017-Union Territory Tax (Rate) dated 28.06.2017.]

[8][(d) “Company” has the same meaning as assigned to it in clause (20) of section 2 of the Companies Act, 2013(18 of 2013).]

2. This notification shall come into force with effect from the 1st day of July, 2017

[F.No. 334/1/2017-TRU]

(Ruchi Bisht)

Under Secretary to the Government of India

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Notes:

1. Inserted vide Notification no. 23/2017 dated 22-8-2017

2. Substituted vide Notification No. 17/2021-Union Territory Tax (Rate) dated 18-11-2021 **w.e.f. 01-01-2022** before it was read as "and motor cycle;"

3. Inserted vide Notification No. 17/2021-Union Territory Tax (Rate) dated 18-11-2021 **w.e.f. 01-01-2022**

"(iv) supply of restaurant service other than the services supplied by restaurant, eating joints etc. located at specified premises."

4. Substituted vide Notification No. 17/2021-Union Territory Tax (Rate) dated 18-11-2021 **w.e.f. 01-01-2022** before it was read as

"and “motor cycle” shall have the same meanings as assigned to them respectively in clauses (22), (25) and (26) of section 2 of the Motor Vehicles Act, 1988 (59 of 1988)."

5. Inserted vide Notification No. 17/2021-Union Territory Tax (Rate) dated 18-11-2021 **w.e.f. 01-01-2022**

6. Substituted vide Notification No. 16/2023- Union Territory Tax (Rate) dated 19-10-2023 **w.e.f. 20-10-2023** before it was read as, "omnibus or any other motor vehicle"

7. Inserted vide Notification No. 16/2023- Union Territory Tax (Rate) dated 19-10-2023 **w.e.f. 20-10-2023**

8. Inserted vide Notification No. 16/2023- Union Territory Tax (Rate) dated 19-10-2023 **w.e.f. 20-10-2023**

9. Substituted vide Notification No. 08/2025-Union Territory (Rate) dated 16-01-2025 **w.e.f. 01-04-2025** before it was read as,

"[5][(c) specified premises means premises providing hotel accommodation services having declared tariff of any unit of accommodation above seven thousand five hundred rupees per unit per day or equivalent.]"

10. Inserted vide Notification No. 17/2025-Union Territory (Rate) dated 17-09-2025 **w.e.f. 22-09-2025**